

24STCV28669 24STCV28669

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Case Number: 24STCV28669 Hearing Date: August 28, 2026 Dept: 224

Haya Jasmine Nagad v. G and J Gross, Inc. DBA Mickey Fine Pharmacy and Grill et al.,

FINAL RULING

Lead case (24STCV28669): The ELEVEN motions to compel further responses are GRANTED. (CRS#1490, 3964, 4175, 4598, 5815, 7772, 1244, 9982, 3508, 4309, and 0990) Defendants G&J Gross, Inc., Jeffrey Gross, Gina Rafael Gross, and Farshad Naysan shall each serve verified, code-compliant further responses to the discovery identified below within 20 days. All objections other than attorney-client privilege and work product are overruled.

Related case (24STCV30995): The three motions to compel initial responses are OFF CALENDAR Per the Notice of Settlement filed, which vacated all hearing dates.

Sanctions are GRANTED in the amount of \$22,620 against Defendants Defendants G&J Gross, Inc., Jeffrey Gross, Gina Rafael Gross, and counsel of record Craig Lawrence Chisvin, jointly and severally on SEVEN OF THE NINE motions filed against them, (\$2,460 per motion - Motion CRS #s 1490, 3964, 4175, 4598, 5815, 7772, 3508), and \$4,920 against Farshad Naysan on the TWO (Motions CRS #s 9982 and 1244), individually.

The court continues the hearing on Motion CRS #s 4309 and 0990 for further briefing on the issues of adequacy of notice of the request for sanctions, and whether Defendants waived argument on notice defects by failing to file an opposition brief. Responses are still due in 20 days, while the Court reserves ruling on the issue of sanctions on these two motions.

Sanctions are due and payable within 30 days.

Introduction

On November 1, 2024, Plaintiff Haya Jasmine Nagad filed her Complaint in this action against Defendants.

On February 4, 2025, Plaintiff served her first sets of written discovery on Defendants.

On June 10, 2025, the parties filed a stipulation providing that Defendants would serve supplemental responses by October 1, 2025.

On October 29, 2025, following Defendants' failure to serve supplemental responses, Plaintiff filed the instant Motions to Compel Further Responses against Defendants G and J Gross, Inc., Jeffrey Gross, Gina Rafael Gross, and Farshad Naysan, together with the supporting separate statements.

On July 1, 2026, the Court held an Informal Discovery Conference, at which the appearing parties agreed that Defendants would serve supplemental responses by July 29, 2026, and the Court ordered Plaintiff to file a consolidated Opening Brief addressing all fifteen motions by August 10, 2026, Defendants to file a consolidated opposition by August 18, 2026, and Plaintiff to file a reply by August 24, 2026.

On August 8, 2026, Plaintiff filed her Opening Brief re: Motions to Compel Further Discovery Responses.

Legal Standard

The court may order further responses where an interrogatory answer is evasive or incomplete, an objection lacks merit, or (for document requests) the statement of compliance or inability is deficient. (Code Civ. Proc., §§ 2030.300, subd. (a);

2031.310, subd. (a).) Interrogatory answers must be "as complete and straightforward as the information reasonably available to the responding party permits." (§ 2030.220, subd. (a).) A representation of inability to comply with a document demand must affirm a diligent search and reasonable inquiry, specify why the party cannot comply (the item never existed, or has been destroyed, lost, misplaced, or stolen, or has never been or is no longer in the party's possession, custody, or control), and identify any person or entity believed to have possession, custody, or control. (§ 2031.230.) On a motion to compel further, the burden is on the responding party to justify each objection. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220–221; Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) Objections not justified in opposition are overruled — though, unlike a motion to compel initial responses, they are not deemed waived by operation of law.

Where a party fails to serve a timely response to interrogatories or inspection demands, the propounding party may move to compel responses; the motion has no 45-day limit, requires no meet-and-confer, and requires no separate statement, and the failure to serve a timely response waives all objections. (§§ 2030.290, 2031.300.) For requests for admission, the failure to serve a timely response permits a motion to deem the matters admitted, which the court must grant unless the responding party serves a substantially code-compliant proposed response before the hearing. (§ 2033.280.)

The court "shall" impose a monetary sanction against a party who unsuccessfully makes or opposes a motion to compel, or who necessitated the motion, unless that party acted with substantial justification or other circumstances make the sanction unjust. (§§ 2030.290(c); 2030.300(d); 2031.300(c); 2031.310(h); 2033.280(c).) The purpose of discovery sanctions is to prevent abuse of the discovery process and correct the specific abuse presented — not to punish. (Do v. Superior Court (2003) 109 Cal.App.4th 1210, 1213.)

Discussion

Lead-case Motions Against G&J Gross, Inc., Jeffrey Gross, and Gina Rafael Gross

These three defendants stipulated at the IDC to serve supplemental responses by July 29, 2026 and did not do so. On the unopposed record, and given the separate statements supporting each motion, the Court finds the original responses deficient and further responses warranted. The Court is inclined to GRANT the following and to order verified, code-compliant further responses without objection (except objections based on privilege or the attorney work-product doctrine, which are preserved), within 20 days:

· G&J — Form Interrogatories 4.1, 4.2, 9.1, 12.1-12.7, 17.1; Special Interrogatories 18, 19, 21, 23, 24; Requests for Production 2, 3, 4, 6, 7, 8, 11, 12, 13, 14, 16, 22, 23, 25, 28.

· Jeffrey Gross — Form Interrogatories 4.1, 4.2, 12.1-12.5, 12.7, 13.1-13.2, 17.1 (as framed in the motion); Requests for Production 8, 26.

· Gina Rafael Gross — Form Interrogatories 2.2, 2.5, 2.7, 4.1, 4.2, 12.1-12.7, 13.1-13.2, 17.1; Requests for Production 7, 8, 9, 11, 12, 13, 26, 28, 29.

Lead-case Motions Against Farshad Peter Naysan (Requests for Production 14, 18; Special Interrogatories 3, 4).

Naysan did not appear at the IDC and did not join the July 29 stipulation. Having reviewed both separate statements, the Court finds the supplemental responses deficient. The Court finds further responses warranted and is inclined to GRANT both motions, with responses due within 20 days.

Related-case Motions to Compel Initial Responses Against Mickey Fine Enterprises (24STCV30995).

The motions are OFF Calendar pursuant to the Notice of Settlement which was filed, and vacated all hearing dates in this matter. CRC 3.1385.

Sanctions

Sanctions are warranted, and no responding party has shown substantial justification. (Code Civ. Proc., §§ 2030.290(c), 2030.300(d), 2031.300(c), 2031.310(h), 2033.280(c); Do v. Superior Court (2003) 109 Cal.App.4th 1210, 1213.)

The Court finds Counsel's hourly rate of \$600 to be reasonable. However, the Court finds the amount of time spent on each motion to be excessive and reduces the request as follows:

As to each motion (eleven motions), the Court grants four hours at \$600, plus the \$60 filing fee for a total of \$2,460 per motion. As to the Consolidated Opening Brief, the Court awards eight hours at \$600, for a total of \$4,800. As to the hearing on the motion, the Court awards one hour at \$600.

The Court hereby awards a total sanctions award of \$32,460, allocated among the responding parties in proportion to the motions directed at each.

Conclusion

Lead case (24STCV28669): The ELEVEN motions to compel further responses are GRANTED. (CRS#1490, 3964, 4175, 4598, 5815, 7772, 1244, 9982, 3508, 4309, and 0990) Defendants G&J Gross, Inc., Jeffrey Gross, Gina Rafael Gross, and Farshad Naysan shall each serve verified, code-compliant further responses to the discovery identified below within 20 days. All objections other than attorney-client privilege and work product are overruled.

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Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final ruling or take the hearing off calendar at its discretion.